

25STCV17509 25STCV17509

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MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter Cornell Fontaine
McTier v. Robert Aguirre Casanova, et al., Los Angeles County Superior
Court case number 25STCV17509, set for hearing on July 27, 2026. Spectrum
Pacific West LLC (Defendant) moves for an order compelling Cornell Fontaine
McTier (Plaintiff) to present for deposition within 15 days. Plaintiff opposes
the motion. Defendant's motion is granted.

A.

Legal Standard

An oral

deposition must be scheduled for at least 10 days after the service of the
deposition notice. (Id., § 2025.270, subd. (a).) "If, after service of a
deposition notice, a party to the action . . . without having served a valid
objection under Section 2025.410, fails to appear for examination, or to
proceed with it, or to produce for inspection any document . . . the party
giving the notice may move for an order compelling the deponent's attendance
and testimony, and the production for inspection of any document . . .
described in the deposition notice." (Id., 2025.450, subd. (a).) The
motion shall be accompanied by a meet and confer declaration or declaration
stating that the petitioner has contacted the deponent to inquire about their nonappearance.
(Id., § 2025.450, subd. (b)(2).)

B. Discussion

As a threshold matter, Plaintiff

argues that Defendant's motion is procedurally defective for multiple reasons.

First, Plaintiff asserts that Defendant's motion is premised on the incorrect statute; however, Defendant's notice of motion properly references Code of Civil Procedure section 2025.450, not solely section 2032.310 like Plaintiff suggests. Thus, the notice properly appraises Plaintiff of the contents of the motion as required under section 1010.

Second, Plaintiff argues that

section 2025.450 is inapplicable because Plaintiff never failed to appear for a deposition. Indeed, motions to compel pursuant to that section apply if a party fails to appear for a deposition without having served a valid objection. (Code Civ. Proc., § 2025.450, subd. (a).) Here, Defendant noticed Plaintiff's deposition unilaterally on April 16, 2026. (Gezucarayan Decl. ¶ 2.) An amended notice set the deposition for May 28, 2026. (Ibid.) Plaintiff canceled this deposition 2 days before it was set to occur, and it was taken off calendar. This did not constitute a proper objection under section 2025.410 as the objection was lodged less than three days before the date of deposition. (Code Civ. Proc., § 2025.410, subd. (a).) Thus, Plaintiff failed to appear for deposition without lodging a proper objection and section 2025.450 is the proper section to invoke.

Third, Plaintiff argues that

Defendant failed to meet and confer in good faith. However, Defendant properly requested on June 4, 2026, that Plaintiff provide alternative dates for deposition within two weeks. (Morris Decl. ¶ 4.) Plaintiff never responded to this communication. (Gezucarayan Decl. ¶ 6.) Thus, Defendant's meet and confer efforts were sufficient.

Fourth, Plaintiff argues that the

motion is moot because Plaintiff offered Defendant potential deposition dates preceding the hearing. However, those dates — July 14, 20, 22, 23, and 24 — were offered on June 30, 2026, twelve days after the present motion was filed. No deposition has occurred in advance of this hearing.

Plaintiff offers no further

substantive argument in opposition. Plaintiff failed to appear for deposition without serving a valid objection and did not timely respond to Defendant's efforts at informal resolution. Thus, the present motion to compel deposition attendance is proper. Accordingly, Defendant's motion is granted.

If a motion pursuant to section

2025.450 is granted “the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent . . . unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).) Plaintiff’s arguments were meritless and the Court does not find that he has acted with substantial justification. Thus, sanctions are appropriate. The Court credits Defendant’s counsel’s hourly rate of \$350. (Morris Decl. ¶ 7.) Given the present motion’s simplicity and the lack of any reply brief from Defendant, the Court only credits counsel with 2 hours for drafting the motion and declaration and 1 hour for attending the hearing on this matter. (Ibid.) Additionally, the Court credits the \$60 filing fee for the present motion. (Ibid.) Accordingly, \$1,110 are imposed on Plaintiff’s counsel ($[\$350 \text{ per hour}] \times [3 \text{ hours}] + [\$60 \text{ filing fee}] = \$1,110$).

C. Conclusion

The Court grants Defendant’s motion and imposes \$1,110 in monetary sanctions on Plaintiff’s counsel.